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AS AMENDED

By: Archer, Luttrell, Waldron,
Alonso-Sandoval, Hefner,
Deck, and Menz of the House

and

Jech of the Senate

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1 2. "Geothermal energy development" means the development of
2 geothermal resources; and

3 3. "Geothermal resources" means the natural heat of the earth
4 in excess of two hundred fifty degrees (250°) Fahrenheit, or the
5 energy, in whatever form, below the surface of the earth present in,
6 resulting from, created by, or that may be extracted from this
7 natural heat in excess of two hundred fifty degrees (250°)
8 Fahrenheit, and all minerals in solution or other products obtained
9 from naturally heated fluids, brines, associated gases and steam, in
10 whatever form, found below the surface of the earth, but excluding
11 oil, hydrocarbon gas and other hydrocarbon substances, and excluding
12 the heating and cooling capacity of the earth not resulting from the
13 natural heat of the earth in excess of two hundred fifty degrees
14 (250°) Fahrenheit, as may be used for the heating and cooling of
15 buildings through an onsite geo-exchange heat pump or similar onsite
16 system.

17 SECTION 3. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 952 of Title 52, unless there is
19 created a duplication in numbering, reads as follows:

20 Either the Corporation Commission or the Department of
21 Environmental Quality (DEQ) may authorize the conversion of an
22 orphaned or abandoned oil or gas well into a facility that provides
23 or supports energy storage or geothermal energy development. When
24 authorizing such a conversion, either the Commission or DEQ may

1 establish fees and financial assurance requirements specific to the
2 energy storage or geothermal development uses. Activities
3 authorized pursuant to the Well Repurposing Act shall not commence
4 until a new written surface damage agreement with the surface owner
5 of record is executed pursuant to Sections 318.2 through 318.9 of
6 Title 52 of the Oklahoma Statutes.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 953 of Title 52, unless there is
9 created a duplication in numbering, reads as follows:

10 A. An orphaned or abandoned oil or gas well that is authorized
11 by either the Corporation Commission or the Department of
12 Environmental Quality (DEQ) pursuant to the Well Repurposing Act to
13 be used for energy storage or geothermal energy development and that
14 is actively operated for energy storage or geothermal energy
15 development shall not be considered an orphaned or abandoned well
16 and shall be considered a well that is being used for beneficial
17 purposes.

18 B. If an orphaned or abandoned oil or gas well authorized for
19 energy storage or geothermal energy development ceases storage
20 operations or geothermal energy development for twelve (12) months
21 or longer, the well shall be plugged and abandoned pursuant to state
22 law and rules issued by either the Corporation Commission or DEQ.

23 C. The Commission and DEQ may promulgate rules to implement the
24 provisions of this act.

SECTION 5. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON ENERGY
April 23, 2026 - DO PASS AS AMENDED